

- (c) require the commission to reconsider the selection.
- (3) At stage 2 the Lord Chancellor must do one of the following –
 - (a) notify the selection;
 - (b) reject the selection, but only if it was made following a reconsideration at stage 1;
 - (c) require the commission to reconsider the selection, but only if it was made following a rejection at stage 1.
- (4) At stage 3 the Lord Chancellor must notify the selection, unless subsection (5) applies and he makes a notification under it.
- (5) If a person whose selection the Lord Chancellor required to be reconsidered at stage 1 or 2 was not selected again at the next stage, the Lord Chancellor may at stage 3 notify that person's name to the Prime Minister.
- (6) In this Part references to the Lord Chancellor notifying a selection are references to his notifying to the Prime Minister the name of the person selected.

30 Exercise of powers to reject or require reconsideration

- (1) The power of the Lord Chancellor under section 29 to reject a selection at stage 1 or 2 is exercisable only on the grounds that, in the Lord Chancellor's opinion, the person selected is not suitable for the office concerned.
- (2) The power of the Lord Chancellor under section 29 to require the commission to reconsider a selection at stage 1 or 2 is exercisable only on the grounds that, in the Lord Chancellor's opinion –
 - (a) there is not enough evidence that the person is suitable for the office concerned,
 - (b) there is evidence that the person is not the best candidate on merit, or
 - (c) there is not enough evidence that if the person were appointed the judges of the Court would between them have knowledge of, and experience of practice in, the law of each part of the United Kingdom.
- (3) The Lord Chancellor must give the commission reasons in writing for rejecting or requiring reconsideration of a selection.

31 Selection following rejection or requirement to reconsider

- (1) If under section 29 the Lord Chancellor rejects or requires reconsideration of a selection at stage 1 or 2, the commission must select a person in accordance with this section.
- (2) If the Lord Chancellor rejects a selection, the commission –
 - (a) may not select the person rejected, and
 - (b) where the rejection is following reconsideration of a selection, may not select the person (if different) whose selection it reconsidered.
- (3) If the Lord Chancellor requires a selection to be reconsidered, the commission –
 - (a) may select the same person or a different person, but
 - (b) where the requirement is following a rejection, may not select the person rejected.